

NYSDOH CLEP Compliance System

*A structured implementation framework for laboratory
licensure, test approval, and survey readiness*

Preview

Preview the system before you buy it. This document contains the full table of contents of the 130-page manual, three representative pages, a full workbook inventory, and three figures.

MANUAL	130 pages
WORKBOOK	40 working tabs
LIBRARY	NYSDOH forms, standards & checklists

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What's inside

The NYSDOH CLEP Compliance System is the working framework I use with laboratories preparing for New York State licensure, test approval, and survey readiness. It is not a template pack. It is the sequence, the evidence requirements, and the failure modes, all organized in the order you need them.

CLEP requirements are spread across dozens of NYSDOH manuals, guidelines, standards, checklists, and forms. Anyone with enough uninterrupted time could assemble them. The system exists so you don't have to, and the rest of your team can easily follow the plan.

The manual

130 PAGES

Narrates each stage: Certificate of Qualification, laboratory permit, and test approval. Provides deep validation guidance for every test classification, with side notes on the mistakes that cause delays and rejections.

The workbook

40 WORKING TABS

Standards, checklists, and guidelines as self-audit worksheets, plus a Navigator, Glossary, Project Plan, Document Gap Tracker, and a Submission Packet Builder that shows you which attachments you need for your specific submission.

The library

NYSDOH SOURCE DOCUMENTS

All the current NYSDOH guidelines, standards, and checklists so you have everything you need in one place rather than hunting through the CLEP website.

WHO'S THIS FOR?

- Laboratory directors organizing a licensure strategy
- QA and compliance leads preparing LDT or modification submissions
- Laboratories outside New York that wish to accept New York specimens
- Teams that want a big leg up in running their CLEP project

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Complete and unabridged. Page numbers are the manual's own.

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Sample page — philosophy and approach

How the manual, workbook, and document library reference each other, and what the system cannot do for you.

NYCLEP Compliance Manual

Introduction

The New York State Department of Health, Wadsworth Center, hosts the Clinical Laboratory Evaluation Program. Any laboratory seeking to perform testing on samples collected in New York State must first obtain licensure for the laboratory and individual approval for each test. The CLEP website is well-maintained and organized, and, frankly, anyone with sufficient time (weeks to months) could navigate the dozens of manual guides, checklists, requirements, and forms to understand what is required and build a plan. But anyone who is usually tasked with this alone must work very hard to get everyone else on board. It is complex and tedious—not difficult, but hard to describe and convey to teammates and leadership. Believe me, I've been that lonely person more than once, and it is stressful.

I'd rather you focus on doing good science and taking excellent care of your patients, not agonizing over wrangling forms and digging through requirements. I built this system, which is also complex and well-organized, to make it easier for teams to get on the same page and stay on track when initiating a project as daunting as New York State laboratory licensure, permitting, and test approval.

It will be tedious, I'm sorry I can't change that, but at least everything is in one place and I'll walk you through every step.

Important caveat! This manual is a companion to guide you through completing all the checklists and forms you need, but it will not build your laboratory procedures and policies, create annotated bibliographies and reference libraries, conduct personnel training or competency assessments, or manage your document control. YOU MUST HAVE a fully functioning, well-organized, and smoothly operating system to qualify for licensure, so be sure you're adequately prepared before coming in here. Taking shortcuts will only hurt you in the end, so be thorough and thoughtful early and often!

In a nutshell, a clinical laboratory permit will be issued when:

1. The laboratory director and assistant directors have been issued Certificates of Qualification in all applicable categories relevant to the laboratory permit application.
2. The laboratory participates in an On-site Survey by a CLEP clinical laboratory consultant(s) and any deficiencies have been corrected.
3. The laboratory has successfully participated in Proficiency Testing (or alternate assessment, as applicable) in all permit categories sought on the application. Note that you must authorize your PT provider to release PT results directly to NYS CLEP!
4. The laboratory has received Test Approval, as applicable.
5. The laboratory director has obtained a Health Commerce System account and affiliated that account with the laboratory.
6. All applicable fees have been paid (*of course*)

What's in your System?

- o This manual (hi!) narrates each stage of the application: obtain a Certificate of Qualification; apply for a laboratory permit; and how to obtain test approval. The real meat is the validation guidance for every test classification. Validate your test properly the first time and document everything correctly, and you are far more likely to obtain approval. Every section of this manual addresses a Guideline, Standard, or Checklist and includes tips and side notes to help you avoid common mistakes.

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Sample page – deficiency prevention

Recurring structure: the requirement, the ways unprepared laboratories get it wrong, and how to get it done right. One page of many.

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thorough documentation of clinical laboratory testing experience. Failure to provide sufficient documentation will delay the processing of your application.

Certification

This section captures any violations, crimes, or licensure and/or certification revocations you may have had. Failure to answer these questions truthfully may result in the rejection of your application. If you answer Yes to any of these questions, you must provide details on a separate sheet.

This application is a legal document, and you must certify that the information you are providing is true and correct.

Instructions for Experience Letters

NY CLEP provides an instruction form you can provide to your current and/or prior laboratory managers or supervisors whom you are asking to attest to your training and/or experience.

These individuals may ask you to draft a letter for them. You may do so, but remember that identical letters submitted by multiple supervisors will likely result in your application being delayed or rejected. Ensure the individuals providing these attestations use their official letterhead and provide original signatures signed in ink (electronic or stamped signatures are not accepted).

Specialty Category – Genetic Testing

The Genetic Testing CQ has unique requirements, including post-doctoral experience through employment or voluntary participation in a clinical laboratory. This experience must include both laboratory management **and** involvement in testing and reporting relevant to the category of Genetic Testing.

For Genetic Testing CQ applications, you must submit

- A complete CQ application
- Up-to-date curriculum vitae
- Letters from **past and current supervisors** documenting your training and experience. **DO NOT** submit copies of the same letter signed by different supervisors. This will result in delays. Each letter must provide specific details, including:
 - Date of employment
 - Type of training and experience acquired
 - Procedures
 - Diseases
 - Analytical techniques
 - Volume of testing personally performed, supervised, and/or directed by the applicant

Letters from responsible administrators at institutions where training or experience was acquired will be accepted only when other references are unavailable. Self-attestations and letters from junior staff of experience and training are not acceptable.

Letters must clearly reflect the experience that satisfies Subdivision 19.3(c) of Title 10 (Health) of the Official Compilation of Codes, Rules, and Regulations of the State of New York.

PRO TIP: Use terms and phrases from the statute in your experience letters, wherever possible. The closer your application adheres to the expectations *as written*, the less likely your application is to be delayed.

Sample page — requirements and guidance

Every validation category is laid out as NYSDOH's requirement on the left and what reviewers expect to see on the right.

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your validation report if any gaps are identified. It is best to address any such gaps before submission to avoid delays in the review stage.

Requirements	Guidance
Validation data summary Succinctly summarize why this new assay is needed, how the new assay was validated, and the validation results. This section should include a description of testing, the number of samples used for validation, the comparison method (gold standard or other FDA or NYS-approved assay), and the overall results.	
Analytical Specificity - Provide a list of all specimens, including specimen types tested in the specificity study. - Provide a summary of the results of the specificity study. If there is any cross-reactivity, provide additional information on how the results will be resolved or interpreted.	Specificity should be demonstrated including at least 30 specimens from confirmed <i>specific diseases or conditions</i> . Include at least 10 additional positive specimens from confirmed autoimmune diseases (e.g., systemic lupus erythematosus, rheumatoid arthritis, multiple sclerosis). If any cross-reactivity is noted, they should be clearly specified in the application. These specimens may count towards the criteria for Assay Validation studies using at least 50 negative specimens (see Assay Verification section below).
Analytical Sensitivity <i>For qualitative assays:</i> - Assays detecting antibodies via a side-by-side dilution series compared to the FDA or NYS-approved assay is required if both assays are available. - Provide a summary of the sensitivity study results for each type of specimen matrix. <i>For quantitative assays:</i> - Provide a summary of the sensitivity study results for each specimen type. - Analytical sensitivity measures the smallest quantity of an analyte that can be reproducibly distinguished from background levels or a zero calibrator in each assay system. It is also called the limit of detection (LOD) of the assay. LOD is defined at the 0.95 confidence level (+/- 2 standard deviations).	The summary must explain discordant results. <i>For qualitative antibody detection assays, serially dilute at least 3 specimens and run them in the established assays and with the new assay. The results should be concordant with the established assay.</i> <i>For immunological detection/quantitation of antibodies, test at least 3 different specimens with a known antibody concentration and serially dilute each through the analytical range and beyond the expected detection limit.</i>

The workbook — 40 working tabs

Every tab is listed here, with descriptions of the utility tabs and a full list of the standards, checklists, and guidelines. The depth of each tab reflects the varying levels of complexity and risk associated with each test category.

UTILITY • 6

START HERE	The seven-step sequence
Navigator	Linked map of every tab
Glossary	CLEP terms and abbreviations
Project Plan	Use this to capture tasks, dependencies, turnaround times, owners
Document Gap Worksheet	Use this to identify documents that need to be created, revised, or retired, as well as their submission binder location, version, and verification tracker
Submission Packet Builder	Use this to identify which attachments your submission needs

STANDARDS • 20

General Systems Standards	Forensic Identity Standards
Andrology Standards	Forensic Toxicology Standards
Blood Lead Standards	Genetic Testing Standards
Blood pH and Gases Standards	Hematology Standards
Lab Blood Immunohematology	Histocompatibility Standards
Cellular Immunology Standards	Microbiology Standards
Clinical Toxicology	Oncology Standards
Cytogenetics Standards	Parentage/Identity Standards
Diag Immunology Standards	Pathology Standards
Fetal Defect Markers Standards	Trace Elements Standards

CHECKLISTS • 10

General Checklist	Genetic Testing Molecular
Cellular Immunology Checklist	Microbiology Molecular
Cytogenetics FISH Checklist	Oncology Molecular
Diag Immunology Checklist	Toxicology
Forensic Identity Checklist	Trace Elements

GUIDELINES • 4

NGS Germline Guidelines	NGS ID Guidelines
MALDI-TOF Micro Guidelines	NGS Somatic Guidelines

The Submission Packet Builder

Set two fields and answer eleven questions about your assay and laboratory. The tab will automatically indicate which attachments you need for your specific submission and which are out of scope. Every item cites the relevant manual section.

1 • SUBMISSION PROFILE

Permit category

Submission type

→ Checklist tab to use

→ Source checklist document (confirm no newer edition on the CLEP site)

2 • ASSAY & LAB CHARACTERISTICS

Is a permit or new-permit-category application ... Y / N

NGS - germline variant detection? Y / N

NGS - somatic variant detection? Y / N

NGS - infectious agent ID / WGS? Y / N

MALDI-TOF for bacterial/fungal ID? Y / N

FISH or aCGH? Y / N

Uses gels, blots, or electrophoresis? Y / N

Quantitative result reported? Y / N

More than one instrument or platform? Y / N

Panel reported a combined derived result? Y / N

RUO or IUC not used? Y / N

3 • THE PACKET — BLOCK A OF FIVE

#	ITEM	SOURCE IN THE MANUAL	APPLIES?
1	Completed category-specific Checklist PDF - page/tab numbers filled in, placed at front of binder	Manual: Method Validation Submissions by Category	AUTO
2	Risk Attestation Form (must ALSO be submitted as a standalone electronic file)	Manual: Tiered Evaluation of LDTs; Digital Submission Guidelines	AUTO
3	Index / table of contents for the packet	Manual: 'organized with an index or table of contents, as numbered or tabbed attachments'	AUTO
4	Assay Modification Form	Manual: Modifications to approved assays	AUTO
5	Exemption Request Form	Manual: Requests for exemption from comprehensive submissions	AUTO
6	Add Under Exemption Form	Manual: Adding LDTs under an approved exemption	AUTO
7	Project ID (PID) from original exemption approval letter cited on submission	Manual: Applying for an exemption - 'PID must be referenced in all future submissions'	AUTO

The Applies? and Include? columns resolve automatically based on your profile responses. Blocks B to E cover the validation package, reports and SOPs, specialty guidelines, and post-submission items.

Inside the workbook

FIGURE 1 • GENERAL SYSTEMS STANDARDS

The universal spine – Preview 6 of 209 rows

Left column is the NYSDOH standard. The Guidance column describes what the standard means in practice. Self-assessment, evidence descriptions, and notes columns are yours to fill in. Cells truncated.

STANDARD	GUIDANCE	SELF-ASSESSMENT
Quality Management System		
Quality Management System Fundamental Standard of Practice (QMS FS) The laboratory must have a Quality Management System (QMS) that ...		Not Evaluated
Quality Management System Standard of Practice 1 (QMS S1): Quality Goals and Performance Expectations The laboratory's Quality ...	The Quality Management System (QMS) must include documents to describe personnel roles and responsibilities, and the processes they must use to meet quality goals and ...	Not Evaluated
Quality Management System Standard of Practice 2 (QMS S2): Quality Systems Manager The laboratory director must designate a quality systems ...	There must be a designated position for a quality systems manager or quality assurance officer and a job description. The designated individual must have the education, experience, ...	Not Evaluated
Quality Management System Standard of Practice 3 (QMS S3): Quality Indicators The laboratory must establish quality indicators (QI) that assess the ...	Additional examples of areas where QI are valuable in assessing performance include acceptable specimen transport and storage, acceptable performance by contract and reference ...	Not Evaluated
Quality Management System Standard of Practice 4 (QMS S4): Quality Indicator Monitoring The laboratory must have standard operating ...	Examples of documentation may include: (1) continued acceptable performance expectations (e.g., measured against a threshold or benchmark); (2) areas in need of improvement; ...	Not Evaluated

FIGURE 2 • GENERAL CHECKLIST

Submission assembly – Preview 6 of 7 rows

Each checklist turns a validation submission into tracked line items with status and evidence columns.

STATUS	REQUIREMENT
Not Started	Practitioner and patient educational materials that include a description of assay limitations and, where applicable, other information as may be necessary for informed consent of test subjects.
Not Started	Clinical indications for testing, including, where appropriate, the prevalence and description of the medical condition.
Not Started	Test subject preparation, specimen collection and handling, specimen rejection criteria, including a description of the mechanism to assure collection and transport requirements have been followed.
Not Started	A description of the assay, assay principle and clinical validity. For molecular tests, a description of the structure of the gene(s) to be tested, if applicable, must be provided.
Not Started	Complete and detailed procedures for performing the assay, including algorithms and flowcharts as necessary and any safety considerations.
Not Started	List of equipment / instrumentation essential to the assay.

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INTRODUCTORY PRICE

~~\$5,000~~ **\$3,750**

First 5 licenses, or through 31 October 2026, whichever comes first.

One laboratory facility, under a single CLIA license or PFI. Purchase orders and invoicing supported.

WHAT YOU RECEIVE

- The 130-page implementation manual (PDF)
- The 40-tab operational workbook (Excel)
- The NYSDOH forms, standards, and guidelines library
- A perpetual license — documents you adapt into your own quality system stay yours

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Questions before you buy, or you need an invoice or purchase order: bronwynr@phoenixlabconsulting.com

This system is not a guarantee of NYSDOH approval, of a passed inspection, or of avoided deficiencies. It is a structured resource, not legal or regulatory advice, and your laboratory director remains responsible for compliance. Requirements change; verify against current NYSDOH sources.